

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                               |                           |                                                        |                                    |                                 |
|---------------------------------------------------|-----------------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Luke Petrinovic                  | Team:<br>Squad #03                            | CCRB Case #:<br>201804535 | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                               |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 05/30/2018 9:00 AM | Location of Incident:<br>Inside of § 87(2)(b) | 18 Mo. SOL<br>11/30/2019  | Precinct:<br>49                                        |                                    |                                 |
| Date/Time CV Reported<br>Wed, 05/30/2018 7:20 PM  | CV Reported At:<br>IAB                        | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 06/06/2018 11:05 AM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM Juan Marte   | 05986  | 961919 | 049 PCT |
| 2. POM Gregory Vega | 30760  | 941164 | 049 PCT |
| 3. LT Lanier Glenn  | 00000  | 923891 | 049 PCT |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. POM Justin Sokol | 05641     | 962112 | 049 PCT  |

| Officer(s)           | Allegation                                                                                 | Investigator Recommendation |
|----------------------|--------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Juan Marte   | Abuse: On May 30, 2018, PO Juan Marte refused to provide his name to § 87(2)(b)            | A . Unsubstantiated         |
| B . POM Juan Marte   | Abuse: On May 30, 2018, PO Juan Marte refused to provide his shield number to § 87(2)(b)   | B . Unsubstantiated         |
| C . POM Gregory Vega | Abuse: On May 30, 2018, PO Gregory Vega refused to provide his name to § 87(2)(b)          | C . Unsubstantiated         |
| D . POM Gregory Vega | Abuse: On May 30, 2018, PO Gregory Vega refused to provide his shield number to § 87(2)(b) | D . Unsubstantiated         |
| E . LT Lanier Glenn  | Abuse: On May 31, 2018, LT Lanier Glenn refused to provide his name to § 87(2)(b)          | E . Unsubstantiated         |

### Case Summary

On May 30, 2019, § 87(2)(b) filed this complaint over the phone with the Internal Affairs Bureau. It was referred to the CCRB and received on June 6, 2018, under log number 18-21381.

On May 30, 2019, at approximately 9:00 a.m., § 87(2)(b) found a live squirrel in the communal stairwell of § 87(2)(b), in the Bronx, where she lives in a § 87(2)(b) floor apartment. She called 911, and PO Juan Marte and PO Gregory Vega, of the 49<sup>th</sup> Precinct, responded. The officers helped remove the squirrel from the stairwell, and then began to leave. As they left, § 87(2)(b) who was upset that the officers were not preparing a police report, asked for their names and badge numbers, and they did not respond (**Allegations A, B, C, and D – Abuse of Authority: Unsubstantiated**).

The next day, on May 31, 2018, § 87(2)(b) repeatedly called 911 to try and get the police to prepare a report about the incident with the squirrel, as she believed that her neighbors downstairs were intentionally letting the squirrel into the building to harass her. Eventually, at around 2:45 p.m., Lt. Lanier Glenn and PO Justin Sokol, both of the 49<sup>th</sup> Precinct, came to her apartment. § 87(2)(b) told them about the incident, and they told her that they could not prepare a report about the incident. § 87(2)(b) asked the officers for their names and badge numbers, PO Sokol provided his but Lt. Glenn did not (**Allegation E – Abuse of Authority: Unsubstantiated**). Then the officers left.

There is no video footage of this incident.

### Findings and Recommendations

**Allegation (A) Abuse of Authority: On May 30, 2018, PO Juan Marte refused to provide his name to § 87(2)(b)**

**Allegation (B) Abuse of Authority: On May 30, 2018, PO Juan Marte refused to provide his shield number to § 87(2)(b)**

**Allegation (C) Abuse of Authority: On May 30, 2018, PO Gregory Vega refused to provide his name to § 87(2)(b)**

**Allegation (D) Abuse of Authority: On May 30, 2018, PO Gregory Vega refused to provide his shield number to § 87(2)(b)**

§ 87(2)(b) (Board Review 01) stated that she was speaking with PO Marte and PO Vega at the front door of the building. She asked the officers to prepare a report for her about the incident, and they refused and turned to get back in their car and leave. As they walked away, § 87(2)(b) asked them both for their names and badge numbers, and the officers ignored her and left. § 87(2)(b) (Board Review 02), who is § 87(2)(b)'s home health aide and was present during the incident, corroborated her testimony, although she was uncertain of exactly what was said as she understands limited English.

Both PO Vega (Board Review 03) and PO Marte (Board Review 04) consistently acknowledged their roles in the incident and refusing to prepare a police report about the incident, as they did not consider it a criminal complaint, although they did prepare memo book entries about responding to the location. Both officers denied that § 87(2)(b) ever asked them for their names or badge numbers.

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that *allegations A, B, C, and D* be closed as *unsubstantiated*.

**Allegation (E) Abuse of Authority: On May 31, 2018, LT Lanier Glenn refused to provide his name to § 87(2)(b)**

§ 87(2)(b) stated that, the day after the initial incident, she called 911 again to try and get a police report about the squirrel being let into the stairwell. Lt. Glenn and PO Sokol arrived and spoke to § 87(2)(b) at the door to her apartment. § 87(2)(b) told the officers about the incident and asked for a police report, but they refused, stating that it was not a matter for the police. § 87(2)(b) then asked both officers for their names and badge numbers. PO Sokol provided his, but Lt. Glenn turned and left.

Both PO Sokol (Board Review 05) and Lt. Glenn (Board Review 06) confirmed that they were present for the incident and refused to prepare a police report for § 87(2)(b). Neither could recall § 87(2)(b) ever asking them for their names or badge numbers.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that *allegation E* be closed as *unsubstantiated*.

**Civilian and Officer CCRB Histories**

- This is the first CCRB case to which § 87(2)(b) has been a party (Board Review 07).
  - PO Marte has been a member of service of two years, and has been the subject of one previous allegation of misconduct, which was also about refusing to provide his name and shield number. That case was closed as complainant unavailable (Board Review 08).
  - PO Vega has been a member of service for thirteen years and has been a subject in three other allegations of misconduct in three other cases, none of which were substantiated.
- § 87(2)(g)
- Lt. Glenn has been a member of service for nineteen years, and has been the subject of nineteen other allegations of misconduct in nine other cases, four of which were substantiated (Board Review 10).
    - In case 201310476, Lt. Glenn was found to have used excessive force twice, and conducted two retaliatory arrests. Charges were recommended by the CCRB, and Lt. Glenn was ultimately found not guilty at a departmental trial.

**Mediation, Civil and Criminal Histories**

- Mediation was attempted when the case was first filed; however, PO Marte and PO Vega refused to mediate with § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A request for any related Notice of Claim was sent to the New York City Comptroller's Office on March 26, 2019. No response has been received as of the date of this request (Board Review 12).

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Squad No.: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date